

Unlike a motion to compel *further* responses, a motion to compel responses when no responses have been provided does not require the propounding party to demonstrate good cause or that it satisfied a meet-and-confer requirement. *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal. App. 4th 390. Despite not being required to meet and confer, Plaintiff mailed Defendant meet and confer correspondence on April 24, 2024.

Monetary sanctions are mandatory per CCP § 2033.280(c), however, Plaintiff did not seek monetary sanctions and provided no evidence regarding attorney's fees or other costs associated with bringing the motion. Sanctions should only be imposed for "reasonable" expenses. CCP § 2033.030. The Court does not have information upon which to make a finding that any amount of sanctions were for reasonable expenses and will not impose sanctions.

The motion is **GRANTED**. Defendant is deemed to have admitted as true each of the items contained in Plaintiff's Request for Admissions, Set One. Objections are waived. Plaintiff provided a proposed Order that will be executed by the Court. The Court confirms the trial date of March 24, 2025.

### **JPMORGAN CHASE BANK, N.A. VS. STENE**

**Case Number: 24CVG-00317**

**Tentative Ruling on Motion for Order that Matters in Request for Admission of Truth of Facts Deemed be Admitted:** Plaintiff JPMorgan Chase Bank, N.A. seeks an order deeming the truth of matters specified in Plaintiff's Requests for Admission, Set One. Despite being timely served, Defendant Andy L Stene did not file an Opposition.

When a party fails to respond to a Requests for Admission, the requesting party may move for an order deeming the genuineness of documents and the truth of matters specified in the requests admitted. CCP § 2033.280(b). Failure to respond also waives any objections to the discovery propounded. CCP § 2033.280(a). Plaintiff's moving papers sufficiently demonstrate that Defendant has failed to respond to Request for Admissions, Set One within the required time frame.

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The motion is **GRANTED**. Defendant is deemed to have admitted as true each of the items contained in Plaintiff's Request for Admissions, Set One. Objections are waived. Plaintiff provided a proposed Order that will be executed by the Court. The Court confirms the trial date of May 12, 2025.

### **MCCOLM VS. SHAW, DDS, ET AL.**

**Case Number: 24CV-0204406**

**Tentative Ruling on Motion for Order Quashing Subpoena Duces Tecum:** Plaintiff Patricia McColm moves to quash subpoenas issued to UCSF School of Dentistry by Defendants Daniel Shaw, D.D.S. and Dana Park Dental. The motion is opposed by Defendants.

A Reply was filed by Plaintiff on October 31, 2024. The Reply should have been filed and served no later than